ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	55th Commission Meeting
DATE:	16 November, 2021
TIME:	02:00 PM
VENUE:	CP's Chamber

#	AGENDA	DECISIONS
1	Appraisal on content development on e-learning course for corporate employees – ED	Noting the progress of content development for e-Learning course for corporate employees and tentative timeline to launch the course by May 2022, the Commission highlighted the need to include features for new recruits to share, discuss and seek guidance on workplace related ethical dilemmas. Similarly, the Commission also directed to start planning the development of course content for Gyalsung and its roll out.
2	Proposal on surrendering pool vehicle – AFS	Against the 12 designated (3) and pool vehicles (9) allocated for the ACC, AFS proposed to surrender Toyota Hilux (bearing Vehicle Registration No. BG-1A-1856) and Maruti Suzuki Van (bearing Vehicle Registration No. BG-1A-1448) considering its poor running condition. Besides frequent breakdown, the cost for maintaining the Hilux is increasingly becoming expensive for repeated mechanical failures. As a result, the Hilux remains parked most of the time. Comparably, the Van is so old that it cannot be deployed for long distance tour. In view of the above, the Commission directed to surrender the above two vehicles and seek two Hilux to replace these surrendered vehicles. If not, seek replacement of Hilux for Hilux and Wagon R for Van. Further, directed the AFS to already take stock of all the vehicle conditions and prepare for replacement as deemed necessary once the current situation improves.
3	Report on Ethics Committee – Committee & HRC	The Commission deliberated on the issue related to the violation of Ethical Code of Conduct during the enforcement of the JPLP case in Phuentsholing following the receipt of Appeal Letter dated 15 November 2021 from Sonam Drukpa. To this, the Chairperson of the Ethics Committee presented the findings of the disciplinary enquiry initiated against the two primary erring officials and appraised that the conduct was not only serious breach of the ACC Ethical Code of Conduct (CoC) but also tantamount to criminal offence of theft or embezzlement of the seized item. Given the gravity of ethical violation, the HRC decided to withhold annual increment for one year along with cautionary notice to Tsheten Tshering, Dy. Chief Integrity Promotion Officer and Ugyen Lhendup, Senior Integrity Promotion Assistant II; and

		reprimanded Sonam Drukpa and Ramesh K Katwal. In view of the findings of the report, the Commission underscored the need to consider the violation by Tsheten Tshering and Ugyen Lhendup as the major breach of Ethical Code of Conduct. The above officials have not only failed to abide by the provisions of the Ethical Code of Conduct but their act also undermined the institutional character and reputation earned so far. Despite knowing that the bottle of wine was a seized item and being cautioned by the seniors and colleagues to return the item to the Search and Seizure team, the Commission noted that the above officials have failed. Besides this, the Commission also noted that Sonam Drukpa and Ramesh Kumar Katwal have failed to take moral responsibility in preventing the misconduct and reporting to the Management as the senior most officials amongst the deputed team at Phuentsholing. The Commission highlighted that it was for such reasons that the Commission had deployed one of the senior most officials as part of the team. When it comes to Kinzang Lhendup, Driver, the Commission noted that as an employee of the ACC, one must not only be aware of ethical standards but also equally exercise sensitivity while dealing with seized items. However, recognizing that the assignment coincided during such trying times with prolonged lockdowns and restrictions besides persistent risks of transmission, the Commission acknowledged to accord due consideration to these adversities and circumstances. Given the serious repercussion that it would have on the long built institutional trust and credibility, the Commission decided as follows to: • Withhold annual increment and promotion by one year for Tsheten Tshering and Ugyen Lhendup. • Upheld the decision of the HRC to reprimand Sonam Drukpa and Ramesh Kumar Katwal. • Reprimand Kinzang Lhendup. Further, the Commission emphasized that such negligence and misconduct will not be tolerated and met with severe actions.
4	Follow-up to the discussions on Annual Report 2020 – 2021 at NA and NC – PPS	In keeping with the discussion on the Annual Report 2020 – 2021 during the presentation to the National Assembly and National Council, the Commission directed the following: • PD, DoPE to update the Commission on the status of conducting Community Contracting Protocol; • LD to review legal provisions on requiring Office of the Consumer Protection to submit a report on increasing prices of commodities despite substantial reduction in custom duty for third country imports; • PPS & LD to find out appropriate agency in understanding the incident related to collapse of Damchu Highway Bridge; • ED, DoPE to rethink on rolling out integrity curriculum in Gyalsung as regular program in daily activities including pre, intermediate and post assessments;

		• ADMD, DoPE & LD to ensure incorporation of issues related to administration and management of Gift and Asset Declaration Rules during its amendment; and • LD to finalize the Model Public Service Code of Conduct and present to the Commission for endorsement and onward transmission to the National Council.

Commissioner **Commissioner** **Chairperson**